CITY OF WALNUT CREEK
RESOLUTION NO.

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF WALNUT CREEK SUBMITTING A MEASURE TO THE VOTERS OF WALNUT CREEK AT THE NOVEMBER 3, 2026 ELECTION TO DETERMINE WHETHER THE POSITION OF CITY TREASURER SHOULD BE CHANGED FROM ELECTED TO APPOINTIVE; REQUESTING THAT THE CONTRA COSTA COUNTY BOARD OF SUPERVISORS CONSENT TO THE CONSOLIDATION OF THIS ELECTION WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE SAME DATE; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND SPECIFYING PROCEDURES RELATED TO SUBMISSION OF BALLOT ARGUMENTS

WHEREAS, the City of Walnut Creek ("City") is a general law city and, pursuant to California Government Code Section 36501, the officers of the City include a City Treasurer;

WHEREAS, the City Treasurer is currently an elected position;

WHEREAS, the Walnut Creek City Council ("Council") desires that the position of City Treasurer be changed from an elected position to an appointive position;

WHEREAS, pursuant to Government Code Section 36508, the Council may submit to the voters the question of whether the position of the City Treasurer should be appointed by the City Council;

WHEREAS, if the majority of the votes cast on the measure support converting the position to an appointive position, the Council shall appoint such officer upon the expiration of the term of the City Treasurer elected in the November, 3, 2026 General Municipal Election, or upon a vacancy in the office of City Treasurer; and

WHEREAS, a General Municipal Election is scheduled to be held in the City of Walnut Creek on November 3, 2026.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Walnut Creek as follows:

Section 1. Placing a Measure on the ballot for the Regular Municipal Election.

Pursuant to Government Code section 36508 the City Council hereby places on the ballot at the November 3, 2026 General Municipal Election in the City of Walnut Creek the question of whether the office of the City Treasurer shall be appointive. This measure shall be designated by letter by the Contra Costa County Registrar of Voters. Pursuant to Election Code Section 10400 *et.seq.*, the election for this measure shall be consolidated with the statewide general election to be held on the same date.

Section 2. Description of the Question Placed on the Ballot.

The exact form of the question, which question shall require the approval of a majority of qualified electors casting votes, as it will appear on the ballot is as follows:

"Shall the office of the City Treasurer be appointive? YES/NO"

Section 3. The City Clerk is authorized, instructed and directed to work with the Contra Costa County Registrar of Voters as needed in order to properly and lawfully conduct the election. The ballots to be used in the election shall be in form and content as required by law. The Contra Costa County Registrar of Voters is authorized to canvass the returns of the general municipal election. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding municipal elections.

Section 4. The Board of Supervisors is requested to instruct the Contra Costa County Registrar of Voters to provide such services as may be necessary for the holding of the consolidated election. The election shall be held in all respects as if there were only one election. The City of Walnut Creek acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code Section 10418. The City of Walnut Creek recognizes that the County will incur additional costs because of this consolidation and agrees to reimburse the County for those costs. The City Manager is hereby authorized and directed to expend the necessary funds to pay for the City's cost of placing the measure on the election ballot.

Section 5. The polls for the election shall be open at 7:00 a.m. on the day of the election and shall remain open continuously from that time until 8:00 p.m. that same day, when the polls shall be closed, except as provided in Section 14401 of the Elections Code of the State of California. The notice of the time and place of holding the election is hereby given, and the City Clerk is authorized to give further notice of the election, as required by law.

Section 6. Establishment of the Deadline for Argument Submission; Designation of Preferences if Multiple Submissions.

Pursuant to Elections Code section 9286 the City Clerk has established August 19, 2026, 5:00 p.m. as the deadline for the submission of arguments in favor of and arguments against the question. If more than one argument for or more than one argument against the question is submitted, the priorities set forth in Elections Code section 9287 shall control. Primary arguments shall not exceed three hundred (300) words and shall be signed by not more than five persons.

Section 7. Provision for Rebuttal Arguments.

Pursuant to Elections Code section 9285(b) the City Council hereby adopts the provisions of Elections Code section 9285(a) allowing the filing of rebuttal arguments. The deadline for filing rebuttal arguments shall be 5:00 p.m., August 24, 2026. Rebuttal arguments shall not exceed two hundred fifty (250) words and shall be signed by not more than five persons; those persons may be different persons than the persons who signed the primary arguments.

Section 8. Pursuant to California Elections Code Section 9282, Mayor Kevin Wilk and Mayor Pro Tem Matt Francois are hereby authorized to submit a written argument in favor of the proposed measure, not to exceed three hundred (300) words, on behalf of the City Council. At

Mayor Kevin Wilk's discretion, the argument may also be signed by other members of the City Council or bona fide associations or by individual voters who are eligible to vote on the measure. In the event that an argument is filed against the measure, Mayor Kevin Wilk and Mayor Pro Tem Matt Francois are also authorized to submit a rebuttal argument on behalf of the City Council, which may also be signed by members of the City Council or bona fide associations or by individual voters who are eligible to vote on the measure, which may be different from those who signed the primary argument.

Section 9. Impartial Analysis

Pursuant to California Elections Code Section 9280, the City Council hereby directs the City Clerk to transmit a certified copy of the measure to the City Attorney. The City Attorney shall prepare an impartial analysis of the measure, not to exceed five hundred (500) words in length, showing the effect of the measure on the existing law and the operation of the measure, and file the impartial analysis with the City Clerk by August 19, 2026.

Section 10. Pursuant to California Elections Code Section 9285, when the City Clerk has selected the arguments for and against the measure, which will be printed and distributed to the voters, the City Clerk shall send copies of the argument in favor of the measure to the authors of the argument against, and copies of the argument against to the authors of the argument in favor. Rebuttal arguments shall be printed in the same manner as the primary arguments. Each rebuttal argument shall immediately follow the primary argument, which it seeks to rebut.

Section 11. The City Clerk is directed to file certified copies of this Resolution with the Board of Supervisors and the Registrar of Voters of the County of Contra Costa.

Section 12. The jurisdictional boundaries of the City of Walnut Creek have not changed since the last general municipal election.

Section 13. This Resolution shall become effective immediately upon its passage and adoption.